Consultant Online Agreement

This Consultant Online Agreement ("Agreement") is entered into on this [Date] by and between **Tazen** ("Company"), a platform providing online consulting services, and the Consultant ("Consultant"). This Agreement governs the terms and conditions under which the Consultant provides services via the Tazen platform.

1. Scope of Agreement

1.1. **Services Provided:** The Consultant agrees to provide professional consulting services in their respective field(s) of expertise, which may include, but are not limited to, astrology, interior design, education, job consultation, health consultation, and other areas listed on the Tazen platform.

1.2. The Consultant is an independent contractor and not an employee, agent, or partner of Tazen.

2. Responsibilities of the Consultant

2.1. **Professional Standards:** The Consultant agrees to deliver high-quality, accurate, and ethical consulting services to clients in accordance with industry standards and laws applicable to their field of expertise.

2.2. **Communication:** The Consultant shall promptly respond to client inquiries, provide clear and concise advice, and adhere to deadlines.

2.3. **Confidentiality:** The Consultant agrees to maintain the confidentiality of all client information obtained during consultations.

2.4. **Compliance:** The Consultant shall comply with all platform rules, company policies, and applicable laws, including those related to licensing or certifications.

3. Tazen's Responsibilities

3.1. **Platform Services:** Tazen will provide the Consultant with access to its platform to connect with clients and manage appointments, communication, and payments.

3.2. **Marketing and Support:** Tazen will promote consulting services and offer technical and administrative support to ensure seamless operation.

4. Fees and Payments

4.1. **Service Fees:** Tazen will charge a commission on every successful consultation, as agreed upon during onboarding. The Consultant will receive the remaining balance after deducting this commission.

4.2. **Payment Schedule:** Payments will be processed on a bi-weekly or monthly basis (as specified) and transferred to the Consultant’s registered account.

4.3. **Taxes:** The Consultant is solely responsible for any taxes arising from their earnings on the platform.

5. Use of Platform

5.1. The Consultant agrees to use Tazen's platform solely for providing consulting services and to refrain from any activities that could harm or misuse the platform.

5.2. The Consultant shall not solicit clients for off-platform engagements without prior written approval from Tazen.

6. Intellectual Property

6.1. Any content or materials created for clients through Tazen's platform (e.g., reports, designs, astrological charts) will remain the property of the client unless otherwise agreed.

6.2. Tazen retains ownership of all platform-related materials, branding, and intellectual property.

7. Confidentiality

7.1. Both parties agree to keep confidential any proprietary or sensitive information shared during the course of this Agreement.

7.2. This obligation will survive termination of the Agreement.

8. Term and Termination

8.1. **Term:** This Agreement shall remain in effect unless terminated by either party with a 30-day written notice.

8.2. **Termination for Cause:** Tazen may terminate this Agreement immediately if the Consultant violates platform policies, engages in misconduct, or receives repeated complaints from clients.

9. Indemnification

The Consultant agrees to indemnify and hold harmless Tazen, its employees, and its affiliates against any claims, damages, or liabilities arising from the Consultant's actions, negligence, or breach of this Agreement.

10. Dispute Resolution

10.1. Any disputes between the Consultant and Tazen shall be resolved through good faith negotiations.

10.2. If unresolved, disputes shall be submitted to arbitration in accordance with the laws of [Jurisdiction].

11. Limitation of Liability

Tazen shall not be held liable for any damages or losses arising from:

- The Consultant's failure to deliver services.
- Any technical issues or downtime of the platform.
- Miscommunication between the Consultant and clients.

12. Representations and Warranties

12.1. The Consultant represents that they possess the necessary skills, qualifications, and, where applicable, licenses to provide consulting services.

12.2. The Consultant warrants that all information provided during onboarding is accurate and up to date.

13. Governing Law
This Agreement shall be governed by and construed in accordance with the laws of [Jurisdiction].

14. Entire Agreement
This Agreement constitutes the entire understanding between the Consultant and Tazen regarding the services and supersedes any prior agreements or communications.

15. Amendments
Tazen reserves the right to update this Agreement periodically. Consultants will be notified of significant changes, and continued use of the platform constitutes acceptance of the revised terms.

Certainly! Here's the continuation and expansion of the **Consultant Online Agreement** for Tazen:

---

17. Non-Compete and Non-Solicitation

17.1. **Non-Compete:**
The Consultant agrees that during the term of this Agreement and for a period of [6/12 months] after termination, they will not directly or indirectly:

- Offer similar consulting services through a competing platform that provides identical services to Tazen.
- Use Tazen's client database for personal gain or to redirect business to other platforms or private engagements.

17.2. **Non-Solicitation:**
The Consultant agrees not to solicit or attempt to solicit any of Tazen's clients, employees, or contractors for services outside the platform without Tazen’s prior written consent.

---

18. Data Privacy and Protection

18.1. The Consultant acknowledges that all client data accessed via Tazen's platform is strictly confidential and must be used solely for the purpose of providing consulting services.
18.2. The Consultant agrees to comply with Tazen's data privacy policies, including but not limited to:

- Not sharing, selling, or misusing client data.

- Storing client data securely to prevent unauthorized access.

18.3. Any breach of data privacy obligations may result in immediate termination and legal action.

---

19. Quality Assurance and Training

19.1. Tazen reserves the right to periodically monitor the Consultant's performance to ensure quality standards are upheld.
19.2. The Consultant may be required to attend training sessions, workshops, or webinars organized by Tazen to improve service delivery and align with platform standards.

---

20. Feedback and Ratings

20.1. Tazen will provide clients the option to rate and review the Consultant's services. The Consultant acknowledges that these ratings and reviews are visible to other users and will impact their credibility on the platform.
20.2. The Consultant may respond to feedback in a professional manner but is prohibited from coercing or incentivizing clients for positive reviews.
20.3. Repeated negative reviews may result in suspension or termination of the Consultant's account.

---

21. Dispute Management with Clients

21.1. In the event of a dispute between the Consultant and a client, the Consultant agrees to work collaboratively with Tazen to resolve the matter amicably.
21.2. Tazen will act as a mediator and have the final say in resolving disputes if an agreement cannot be reached.
21.3. Consultants are prohibited from threatening, harassing, or using abusive language towards clients under any circumstances.

---

22. Liability and Indemnity

22.1. **Consultant's Liability:**
The Consultant acknowledges that they are solely responsible for the accuracy and quality of the services provided to clients.
22.2. **Indemnification:**

The Consultant agrees to indemnify and hold Tazen harmless from any claims, liabilities, or damages arising from:

- Errors or omissions in the Consultant's services.
- Breach of this Agreement by the Consultant.
- Any illegal or unethical actions taken by the Consultant during the provision of services.

---

23. Termination Procedures

23.1. **By Tazen:**
Tazen reserves the right to terminate this Agreement without notice if the Consultant:

- Violates any platform policies or terms of this Agreement.
- Engages in fraudulent, unethical, or illegal practices.
- Receives multiple valid complaints from clients.
  23.2. **By the Consultant:**
  The Consultant may terminate this Agreement with a 30-day written notice. Any pending services or disputes must be resolved prior to termination.
  23.3. Upon termination, the Consultant must:
- Cease using Tazen's platform and branding.
- Settle any outstanding dues with Tazen.

---

24. Marketing and Publicity

24.1. Tazen reserves the right to use the Consultant's name, photo, and professional profile for marketing and promotional activities related to the platform.
24.2. The Consultant agrees not to use Tazen's branding or name in external communications without prior approval.

---

25. Amendments to Policies and Terms

25.1. Tazen reserves the right to modify this Agreement, platform policies, or service terms at any time.
25.2. Consultants will be notified of significant changes via email or platform notifications. Continued use of the platform constitutes acceptance of the revised terms.

---

26. Force Majeure

26.1. Tazen shall not be held liable for any delay or failure to perform its obligations under this Agreement due to events beyond its reasonable control, including but not limited to natural disasters, government actions, labor strikes, or technical failures.

---

27. Severability

27.1. If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

---

28. No Waiver

28.1. The failure of either party to enforce any provision of this Agreement shall not constitute a waiver of that provision or any other provision.

---

29. Governing Language

29.1. This Agreement is drafted in [English/other language]. In case of discrepancies between translations, the English version shall prevail.

---

31. Insurance and Liability Coverage

31.1. **Consultant's Responsibility:**
The Consultant is responsible for obtaining and maintaining any professional liability insurance, errors and omissions insurance, or any other coverage deemed necessary for the consulting services they provide.
31.2. **Proof of Insurance:**
Upon request, the Consultant must provide proof of such insurance to Tazen. If the Consultant fails to do so, Tazen reserves the right to terminate this Agreement.

---

32. No Partnership or Joint Venture

32.1. **Independent Contractor Status:**
The Consultant is an independent contractor and is not an employee, partner, or joint venturer of Tazen. Nothing in this Agreement shall be construed to create a partnership, joint venture, or employment relationship between the Consultant and Tazen.

32.2. **No Authority to Bind:**
The Consultant has no authority to enter into any contracts or agreements on behalf of Tazen or to bind Tazen in any way.

---

33. Social Media and Promotional Content

33.1. **Content Sharing:**
The Consultant may be required to create promotional content such as posts, articles, or videos for Tazen's social media platforms to promote their services. The Consultant agrees to provide such content when requested.
33.2. **Branding Guidelines:**
Consultants must adhere to Tazen's branding guidelines while creating promotional content. The guidelines will be provided to the Consultant upon signing this Agreement.
33.3. **Review and Approval:**
All promotional content created by the Consultant for Tazen must be reviewed and approved by Tazen before being posted on any platform.

---

34. Consultation Restrictions

34.1. **Scope of Service:**
The Consultant agrees to only provide consultations in the areas of their expertise listed on the Tazen platform. Any consultation outside of their designated services must be approved in writing by Tazen.
34.2. **Unauthorized Services:**
The Consultant is prohibited from offering services that are illegal, unethical, or harmful in nature, including but not limited to:

- Offering medical or legal advice without proper certification.
- Providing services that promote hate speech, discrimination, or violence.

---

35. Availability and Scheduling

35.1. **Consultation Availability:**
The Consultant agrees to keep their availability up-to-date on the platform and will make reasonable efforts to honor scheduled appointments.
35.2. **Rescheduling:**
If a Consultant needs to reschedule or cancel a consultation, they must inform the client and Tazen at least [48 hours] in advance.
35.3. **No-Show Policy:**

If a Consultant misses a scheduled consultation without prior notice, Tazen reserves the right to issue a penalty fee or suspend the Consultant's account.

---

36. Client Refund Policy

36.1. **Refunds:**
Tazen may issue a full or partial refund to clients if they are dissatisfied with the services rendered by the Consultant. The decision to issue a refund is at Tazen's discretion.
36.2. **Consultant's Responsibility:**
If a refund is issued due to the Consultant's failure to deliver services or providing substandard services, the Consultant may be required to reimburse Tazen for the refund amount.
36.3. **Dispute Resolution for Refunds:**
In case of a dispute regarding refunds, Tazen will act as the arbitrator between the Consultant and the client.

---

37. Monitoring and Audits

37.1. **Performance Monitoring:**
Tazen reserves the right to monitor the Consultant's performance, including client feedback, consultation success rates, and platform compliance.
37.2. **Audits:**
Tazen may conduct periodic audits of the Consultant's activities on the platform, including consultations, payments, and communications with clients, to ensure adherence to the terms of this Agreement.

---

38. Platform Usage and Restrictions

38.1. **Acceptable Use:**
The Consultant agrees to use the platform solely for providing professional consulting services and must not engage in activities that are disruptive, harmful, or illegal, including:

- Spamming or sending unsolicited messages to clients.
- Using the platform to distribute malware or engage in cyberattacks.
- Attempting to bypass platform security measures.
  38.2. **User Account:**
  The Consultant must maintain the confidentiality of their login credentials and are solely responsible for all activity under their account.

---

39. Third-Party Services and Content

39.1. **Use of Third-Party Platforms:**
Tazen may integrate third-party tools, services, or content into its platform, including payment processors, marketing tools, and communication platforms. The Consultant agrees to use these services in compliance with any additional terms set by these third parties.
39.2. **Liability for Third-Party Services:**
Tazen is not responsible for any issues arising from third-party services or tools that are integrated into the platform. The Consultant agrees to hold Tazen harmless for any claims, damages, or losses related to third-party services.

---

40. Exit Strategy and Deactivation

40.1. **Deactivation by Consultant:**
The Consultant may deactivate their account on Tazen at any time by notifying Tazen. Any outstanding payments due will be settled before deactivation.
40.2. **Deactivation by Tazen:**
Tazen reserves the right to deactivate the Consultant's account if they violate any terms of this Agreement or engage in behavior that damages the reputation of the platform.
40.3. **Data Retention:**
Upon deactivation, Tazen will retain any data required for legal or compliance reasons, but the Consultant's personal and performance data may be deleted from the platform as per Tazen's data retention policies.

---

41. Relationship with Clients

41.1. **Client Relationship:**
The Consultant acknowledges that all client relationships are managed through the Tazen platform. The Consultant may not contact clients directly for any reasons other than providing the services via the platform unless given explicit written permission by Tazen.
41.2. **Client Confidentiality:**
The Consultant is prohibited from disclosing any client-related information to third parties without the express consent of the client and in compliance with relevant privacy laws.

---

42. Entire Agreement and Modifications

42.1. **Entire Agreement:**
This Agreement constitutes the entire understanding between the parties regarding the Consultant's provision of services via the Tazen platform.

42.2. **Modifications:**
Any modifications or amendments to this Agreement must be made in writing and signed by both parties.

---

43. Waiver of Rights

43.1. **No Waiver of Rights:**
Any failure by either party to enforce any part of this Agreement shall not be construed as a waiver of the right to enforce that provision or any other provision at a later time.

---

44. Assignment

44.1. **No Assignment by Consultant:**
The Consultant may not assign or transfer their rights and obligations under this Agreement to any other person or entity without the prior written consent of Tazen.
44.2. **Tazen's Right to Assign:**
Tazen reserves the right to assign or transfer its rights and obligations under this Agreement to any third party, including affiliates, contractors, or successors.

---

45. Additional Clauses for Specialized Consultants (if applicable)

45.1. **Health Consultants:**
Health consultants must have the necessary qualifications and certifications and are restricted from providing medical diagnoses or treatments. They are also prohibited from claiming to cure or treat any health condition.
45.2. **Job Consultants:**
Job consultants are not responsible for job placement but may provide career advice, resume tips, or interview coaching. They must not guarantee employment.
45.3. **Astrology Consultants:**
Astrology consultants must provide services that are respectful, non-discriminatory, and ethical. They are not allowed to provide any form of medical or life-threatening advice.

---

46. Dispute Resolution

46.1. **Arbitration:**
Any disputes arising out of or related to this Agreement shall first be attempted to be resolved through mediation. If the dispute is not resolved through mediation, it shall be settled by binding

arbitration in [location], under the rules of the [arbitration organization], and the decision of the arbitrator(s) shall be final.

46.2. **Jurisdiction:**

In the event that arbitration does not occur or is unsuccessful, the courts located in [location] shall have exclusive jurisdiction over any disputes.

46.3. **Legal Fees:**

The prevailing party in any dispute shall be entitled to recover all reasonable legal fees, costs, and expenses incurred in connection with the dispute resolution process.

---

47. Confidentiality and Non-Disclosure

47.1. **Confidential Information:**

The Consultant agrees to maintain the confidentiality of all proprietary information disclosed to them by Tazen, including but not limited to business plans, client information, platform data, strategies, financials, and technical details.

47.2. **Non-Disclosure:**

The Consultant agrees not to disclose any confidential information to third parties without the prior written consent of Tazen, unless required by law. This obligation shall remain in effect during the term of this Agreement and indefinitely after its termination.

47.3. **Return of Information:**

Upon termination of this Agreement, the Consultant agrees to return or destroy all confidential information in their possession.

---

48. Termination by Consultant

48.1. **Notice of Termination:**

The Consultant may terminate this Agreement at any time by providing at least [30 days] written notice to Tazen. The Consultant shall complete any ongoing services or obligations before the effective termination date.

48.2. **Termination for Convenience:**

Termination of this Agreement by the Consultant shall not relieve the Consultant of any financial obligations owed to Tazen for services rendered prior to termination.

48.3. **Return of Property:**

Upon termination, the Consultant must return any Tazen-owned property, including documents, equipment, or software provided for the fulfillment of this Agreement.

---

49. Compliance with Laws

49.1. **Laws and Regulations:**
The Consultant agrees to comply with all applicable laws, regulations, and industry standards while providing services through the Tazen platform. This includes, but is not limited to, laws related to consumer protection, intellectual property, data privacy, and professional licensing.
49.2. **International Compliance:**
If the Consultant provides services to clients in other countries, they are responsible for ensuring compliance with the laws of those jurisdictions, including any required licenses or certifications.

---

50. Indemnity

50.1. **Indemnification by Consultant:**
The Consultant agrees to indemnify, defend, and hold harmless Tazen, its directors, employees, agents, and affiliates, from and against any claims, damages, liabilities, costs, or expenses arising from:

- The Consultant's breach of this Agreement.
- The Consultant's provision of services that cause harm or loss to a client.
- Any failure by the Consultant to comply with applicable laws and regulations.

50.2. **Indemnification by Tazen:**
Tazen agrees to indemnify, defend, and hold harmless the Consultant from any claims, damages, liabilities, costs, or expenses arising from Tazen's negligence or breach of this Agreement.

---

51. Force Majeure

51.1. **Force Majeure Events:**
Neither Tazen nor the Consultant shall be liable for failure or delay in performing any of its obligations under this Agreement due to causes beyond their reasonable control, including but not limited to acts of nature, government restrictions, labor disputes, or technical failures.
51.2. **Notification of Force Majeure:**
In the event of a force majeure situation, the affected party must notify the other party as soon as possible and make reasonable efforts to minimize the impact of the delay or non-performance.

---

52. Technology and Platform Updates

52.1. **Platform Changes:**
Tazen reserves the right to update or modify the platform at any time, including adding or

removing features or services. The Consultant agrees to adapt to any such changes and to continue using the platform in accordance with the updated terms.

52.2. **Compatibility:**

The Consultant is responsible for ensuring that their devices, software, and internet connectivity are compatible with the Tazen platform and its features. Tazen is not responsible for any technical issues faced by the Consultant due to incompatibility.

---

53. Intellectual Property Ownership

53.1. **Ownership of Platform Content:**

All content, materials, and intellectual property provided on the Tazen platform, including but not limited to logos, trademarks, and proprietary software, remain the exclusive property of Tazen.

53.2. **Consultant-Generated Content:**

The Consultant retains ownership of any original content they create (e.g., written materials, consultations, etc.) during the course of providing services on the Tazen platform. However, the Consultant grants Tazen a non-exclusive, royalty-free, worldwide license to use, display, and distribute such content for the purpose of promoting the services on the platform.

---

54. Non-Solicitation

54.1. **Non-Solicitation of Clients:**

For the duration of this Agreement and for a period of [12 months] following its termination, the Consultant agrees not to solicit or attempt to solicit any clients of Tazen for their own personal consulting business, whether or not through the Tazen platform.

54.2. **Non-Solicitation of Employees:**

The Consultant agrees not to solicit or hire any employees or contractors of Tazen during the term of this Agreement and for a period of [12 months] after its termination.

---

55. Client Relationship Management

55.1. **Client Communication:**

The Consultant is encouraged to communicate with clients professionally and respectfully via the platform. Direct personal communication with clients outside the platform is discouraged unless necessary for the fulfillment of services.

55.2. **Client Feedback and Complaints:**

The Consultant agrees to respond to client feedback and complaints promptly and in a professional manner. If issues cannot be resolved, the Consultant must notify Tazen for assistance in resolving the matter.

---

56. Successor Agreements and Continuity

56.1. **Successor Agreements:**
Tazen reserves the right to enter into new agreements with the Consultant, which may supersede or replace this Agreement. If such an agreement is entered into, the terms of this Agreement will no longer apply unless explicitly stated otherwise.
56.2. **Continuity of Obligations:**
Any obligations or responsibilities that have accrued prior to the termination or expiration of this Agreement, such as outstanding payments or confidentiality obligations, shall remain in effect.

---

57. Miscellaneous

57.1. **Severability:**
If any provision of this Agreement is found to be unenforceable or invalid by a court or arbitrator, the remainder of the Agreement shall remain in full force and effect.
57.2. **Headings:**
The headings used in this Agreement are for convenience only and do not affect the interpretation of the Agreement.
57.3. **Survival:**
Certain provisions of this Agreement, such as confidentiality, indemnity, and payment obligations, shall survive the termination or expiration of the Agreement.

---

58. Notices
All notices under this Agreement must be sent to the following:

- **Tazen Contact Information:**
  Email: [support@tazen.com]
  Address: [Insert Address]

- **Consultant Contact Information:**
  Email: [Insert Consultant Email]
  Address: [Insert Consultant Address]

---

59. Acknowledgment and Acceptance

By signing this Agreement or accepting its terms online, the Consultant acknowledges that they have read, understood, and agree to abide by all terms and conditions outlined herein.

By signing below, both parties agree to the terms and conditions outlined in this Agreement.

Tazen Representative
Name: _____
Title: _____
Signature: _____
Date: _____

Consultant
Name: _____
Signature: _____
Date: _____